

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rushelle Sharpe	Team: Team # 5	CCRB Case #: 201110647	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Saturday, 08/13/2011 11:17 PM	Location of Incident: § 87(2)(b) and § 87(2)(b) and the 44th Precinct Stationhouse.		18 Mo. SOL 2/13/2013 Precinct: 44
Date/Time CV Reported Tue, 08/16/2011 9:12 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Tue, 08/16/2011 9:12 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Jose Ramos	12164	946704	44 PCT
2. SGT Francisco Perez	00767	924326	PBBX
3. POM Alexis Dejesus	01421	946903	044 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Nivia Fontanez	21868	946999	044 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Jose Ramos	Force: At § 87(2)(b) and § 87(2)(b) in the Bronx, PO Jose Ramos used physical force against § 87(2)(b)	A . Unfounded
B . POM Jose Ramos	Force: At § 87(2)(b) and § 87(2)(b) in the Bronx, PO Jose Ramos used pepper spray against § 87(2)(b)	B . Unsubstantiated
C . SGT Francisco Perez	Force: At the 44th Precinct stationhouse, Sgt. Francisco Perez used physical force against § 87(2)(b)	C . Unfounded
D . POM Alexis Dejesus	Force: At the 44th Precinct stationhouse, PO Alexis Dejesus used physical force against § 87(2)(b)	D . Unfounded

Case Summary

On August 16, 2011, § 87(2)(b) contacted the CCRB and filed a complaint via the call processing system (encl. 3A-3B).

On August 13, 2011, at approximately 11:17 p.m., at the intersection of § 87(2)(b) and § 87(2)(b) in the Bronx, § 87(2)(b) and § 87(2)(b) were approached by Sgt. Francisco Perez, assigned to Patrol Borough Bronx, and PO José Ramos, PO Alex Dejesus, and PO Nivia Fontanez, all assigned to the 44th Precinct. The following allegations resulted:

Allegation A – Force: At § 87(2)(b) and § 87(2)(b) in the Bronx, PO José Ramos used physical force against § 87(2)(b).

Allegation C – Force: At the 44th Precinct stationhouse, Sgt. Francisco Perez used physical force against § 87(2)(b).

Allegation D – Force: At the 44th Precinct stationhouse, PO Alexis Dejesus used physical force against § 87(2)(b). § 87(2)(g), it is recommended that

Allegations A, C, and D be closed as **Unfounded**.

Allegation B – Force: At § 87(2)(b) and § 87(2)(b) in the Bronx, PO José Ramos used pepper spray against § 87(2)(b). § 87(2)(g)

§ 87(2)(b) the investigation recommends that **Allegation B** be closed as **Unsubstantiated**.

Civilian Statement(s)

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) is a Hispanic male, § 87(2)(b) with black hair and brown eyes, who was § 87(2)(b) at the time of the incident. § 87(2)(b)

CCRB Statement

Upon initially filing the complaint on the CCRB's call processing system on August 16, 2011, § 87(2)(b) provided a brief narrative of the incident (encl. 3A-3B). On August 19, 2011, § 87(2)(b) provided a telephone statement (encl. 4A). While providing his statement, § 87(2)(b) became combative with the assigned investigator and an investigative manager during their attempts to discuss the incident. He was interviewed at the CCRB on November 18, 2011 (encl. 4B-4I). § 87(2)(g)

On August 13, 2011, at approximately 11:17 p.m., § 87(2)(b) was standing on the corner of § 87(2)(b) and § 87(2)(b) in the Bronx with § 87(2)(b) and an unidentified individual named "§ 87(2)(b) § 87(2)(b) and § 87(2)(b) were drinking Hennessy liquor out of white foam cups but § 87(2)(b) was not. A marked police van approached § 87(2)(b) and his friends at the corner and officers, identified by § 87(2)(b) as Sgt. Francisco Perez, of Patrol Borough Bronx, and PO Alexis Dejesus, and PO José Ramos, both assigned to the 44th Precinct, exited and approached § 87(2)(b) and his friends. § 87(2)(b) was able to read Sgt. Perez's name from his shield. An additional officer identified by the investigation, PO Nivia Fontanez, also assigned to the 44th Precinct, exited the van and approached the group as well. The empty Hennessy bottle that § 87(2)(b) and § 87(2)(b) had been drinking from was under a mailbox which was five to six feet away from where § 87(2)(b) was standing.

Sgt. Perez immediately requested identification from § 87(2)(b). As he removed his wallet from his right pants pocket and took out his identification, § 87(2)(b) asked Sgt. Perez, in a normal tone of voice, what the problem was. Sgt. Perez snatched the identification from § 87(2)(b) and instructed PO Ramos to handcuff § 87(2)(b). PO Ramos immediately grabbed § 87(2)(b) by his left arm and turned him around to face a brick wall that was two feet behind the group. PO Ramos immediately handcuffed § 87(2)(b) against the wall. While being handcuffed by PO Ramos, § 87(2)(b) was not attempting to move his body or hands away from PO Ramos. § 87(2)(b) asked PO Ramos why he was being handcuffed, to which PO Ramos replied that he was just following orders. § 87(2)(b) turned his head to the left to look at PO Ramos behind him, and read PO Ramos' shield number out loud. As he read the shield number out loud, PO Ramos pushed § 87(2)(b) up and further towards the wall, rubbing his face against the wall. § 87(2)(b) suffered a scrape on his upper right cheek from PO Ramos pushing him against the wall. PO Ramos punched § 87(2)(b) in the back of his head with a closed fist approximately three to four times. § 87(2)(b)'s friends witnessed this interaction. PO Ramos pulled § 87(2)(b) by his shoulders towards the police van.

Once at the police van, PO Ramos held the back of § 87(2)(b)'s shirt and threw him head first into the police van. While PO Ramos dealt with § 87(2)(b), the other officers were interacting with § 87(2)(b)'s friends. After being placed in the van, § 87(2)(b) began screaming and yelling for help. § 87(2)(b) was lying on his stomach on top of one of the rows of seats. PO Ramos stepped out of the van and removed his pepper spray canister from his belt. § 87(2)(b) alleged in his telephone statement that prior to removing his pepper spray from his belt, PO Ramos beat him up inside the police van. He did not specify what type of force PO Ramos used against him and did not reiterate this allegation in his subsequent statement. Upon observing PO Ramos remove the canister, § 87(2)(b) attempted to slide his body along the seat and place his face into a small opening between the seat and the side of the van, facing away from PO Ramos. Though trying to move his body away from PO Ramos, § 87(2)(b) did not attempt to exit the van. PO Ramos entered the van and sprayed the seat, behind § 87(2)(b)'s head. PO Ramos picked up § 87(2)(b)'s head and rubbed his face onto where he had previously sprayed the mace. After PO Ramos rubbed § 87(2)(b)'s face into the seat, § 87(2)(b) heard (as he could not see anything due to the pepper spray in his eyes) PO Ramos exit the van and close the doors. Sometime later, § 87(2)(b) heard the van doors open again and heard all his friends being placed into the van.

The officers transported § 87(2)(b) and his friends to the 44th Precinct stationhouse. Once at the stationhouse, § 87(2)(b) and his friends were escorted inside. § 87(2)(b) was unable to see at this point due to the pepper spray in his eyes. Once inside the stationhouse, § 87(2)(b) requested water to wash his face. An unfamiliar male voice told § 87(2)(b) that he would have to wait. § 87(2)(b) threatened to start kicking around him if he was not provided water to wash his face. § 87(2)(b) was taken to a bathroom by an unidentified officer. The water was turned on and § 87(2)(b) dipped his face down to the water to wash his face. The water was too hot and burned § 87(2)(b)'s face. After he washed his face, § 87(2)(b) was still unable to open his eyes. § 87(2)(b) was escorted to another room by this unidentified officer. While on his way to the room, § 87(2)(b) was not saying anything or physically resisting. Once inside the room, § 87(2)(b) was made to stand. At some point, § 87(2)(b) ended up on the floor. He could not specify how he ended up on the ground. While on the floor, § 87(2)(b) felt multiple and repeated hits and kicks to the left side of his body. § 87(2)(b) felt someone holding him to the ground while he felt multiple hits to his body. § 87(2)(b) was hit on his left arm, on the left side of his ribs and kicked on his left leg and ankle. He was hit approximately three to four times in each area. He felt that he was hit with closed fists on his arm and ribs, and felt that someone was kicking and stomping on his left leg and left ankle. He was unable to see who was hitting and kicking him as his eyes were closed from the pepper spray. § 87(2)(b) was able to open his eyes and saw that PO Dejesus was behind him, holding his body down and Sgt. Perez

was standing in front of him. There were no other officers inside the room. § 87(2)(b) alleged in his telephone statement, that upon him opening his eyes, PO Dejesus said, “Oh, now you can see motherfucker!” He did not reiterate this allegation in his subsequent statement. § 87(2)(b) saw § 87(2)(b) standing directly outside of the room. § 87(2)(b) from outside the door, mumbled to § 87(2)(b) that the officers “fucked him up.” Neither PO Dejesus nor Sgt. Perez said anything to § 87(2)(b). § 87(2)(b) accused the officers of beating him up. Both officers denied this. § 87(2)(b) told PO Dejesus that he wanted to go to the hospital as he believed that he may have had a broken rib from being hit. § 87(2)(b) was shackled and handcuffed and transported by an FDNY ambulance from the 44th Precinct stationhouse to § 87(2)(b).
§ 87(2)(b)
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§ 87(2)(b)

After his time at the hospital, § 87(2)(b) and PO Dejesus were picked up by Sgt. Perez and transported back to the 44th Precinct. § 87(2)(b) remained in the stationhouse until the next day when he was taken to Bronx Central Booking and charged with § 87(2)(a) 160.50. § 87(2)(b) maintained that he had not acted violently towards any officer during the entire incident.

Witness: § 87(2)(b)

- § 87(2)(b) did not provide any pedigree information.

CCRB Statement

On June 6, 2012, § 87(2)(b) provided the following phone statement (encl. 5). On August 13, 2011, at approximately 11:05 p.m., § 87(2)(b) was standing at the corner of § 87(2)(b) and § 87(2)(b) in the Bronx, with § 87(2)(b) his brother § 87(2)(b) (b) § 87(2)(b) and an unidentified individual named “§ 87(2)(b). While at the corner, § 87(2)(b) had been drinking Hennessy liquor in a white plastic cup. § 87(2)(b) was the only one drinking in the group. There were no bottles around the group. As they stood on the corner, police officers pulled up to the sidewalk in a marked police van. When the officers pulled up, § 87(2)(b) put his cup two steps away from him. Four officers, identified by the investigation as PO Nivia Fontanez, Sgt. Francisco Perez and PO José Ramos, and PO Alexis Dejesus exited the van. PO Fontanez approached § 87(2)(b) while Sgt. Perez and PO Ramos approached the rest of the group. The officers immediately instructed the group to get against the wall behind them. The group complied. § 87(2)(b) asked the officers why they had stopped the group. § 87(2)(b) spoke loudly to the officers but not aggressively. As § 87(2)(b) continued to ask the officers why the group had been stopped, Sgt. Perez and PO Ramos escorted him to the other side of the corner, where § 87(2)(b) could not see. However, § 87(2)(b) could hear the statements made by § 87(2)(b) and the officers. § 87(2)(b) asked what he had done, and one of the officers repeatedly told him to shut up. § 87(2)(b) then heard sounds that indicated to him that someone was being hit repeatedly, but he did not observe who or what made the sounds. Both Sgt. Perez and PO Ramos then escorted § 87(2)(b) to the police van. § 87(2)(b) could tell § 87(2)(b) was upset by his facial expressions but § 87(2)(b) was not saying anything. § 87(2)(b) did not observe any injuries on § 87(2)(b). The officers placed § 87(2)(b) into the van on the side facing the sidewalk and closest to the group. The officers physically lifted § 87(2)(b) and “threw” him into the back of the van. § 87(2)(b) could not specify how the officers threw him. § 87(2)(b) was repeatedly asking what he had done and saying that the officers had no probable cause. While inside the van, PO Ramos stomped on § 87(2)(b) ribs several times. § 87(2)(b) was unable to specify how this was possible as § 87(2)(b) and the officers were inside the back of the van with dark tinted windows. § 87(2)(b) heard § 87(2)(b) yelling for help. PO Ramos pepper sprayed § 87(2)(b) inside of the van. § 87(2)(b) observed PO Ramos remove the pepper spray canister

from its holster, though § 87(2)(b) could not specify whether PO Ramos sprayed it directly at § 87(2)(b). § 87(2)(b) did not hear the officers issue any instructions or commands to § 87(2)(b) prior to using the pepper spray. After PO Ramos sprayed § 87(2)(b), PO Ramos exited the van and closed the doors. Eventually, all the members of the group were arrested and placed inside the van. Everyone was transported to the 44th Precinct stationhouse. Numerous individuals from the neighborhood gathered to watch the group's interaction with the officers.

Once at the stationhouse, § 87(2)(b) complained that he wanted to wash the mace from his eyes. Officers, whom § 87(2)(b) did not recall, took him to the bathroom to wash off his face. § 87(2)(b) yelled in the bathroom, and yelled that the officers gave him hot water to wash his face, and called the officers "motherfuckers." § 87(2)(b) was taken to a back cell by four to five officers, and § 87(2)(b) remained at the front of the stationhouse. § 87(2)(b) heard § 87(2)(b) yelling in the back cell. § 87(2)(b) was unable to describe the officers who went with § 87(2)(b) to the back cell. He believed that Sgt. Perez and PO Ramos went with § 87(2)(b) to the back cell. § 87(2)(b) was only screaming and not saying anything specific. § 87(2)(b) and others were placed inside another holding cell.

Please call letters were sent to § 87(2)(b) on January 26, 2012, February 22, 2012, and May 31, 2012. On June 6, 2012, § 87(2)(b) scheduled an interview for June 22, 2012, but did not appear for the interview. § 87(2)(b) did not contact the CCRB to cancel or rescheduled his interview. As of the writing of this report, § 87(2)(b) has not contacted the CCRB to provide a formal statement.

Witness: § 87(2)(b)

- § 87(2)(b) did not provide any pedigree information.

CCRB Statement

§ 87(2)(b) provided a phone statement to the CCRB on June 7, 2012 (encl. 6A-6B). § 87(2)(g) . On August 13, 2011, at approximately 11:05 p.m., § 87(2)(b) was standing on the corner of § 87(2)(b) and § 87(2)(b) in the Bronx, with his brother, § 87(2)(b) and an unidentified individual named "§ 87(2)(b)". No one in the group was drinking alcohol. Four officers approached the group after exiting from a marked police van. An officer, identified by the investigation as PO José Ramos, instructed the group to get on the wall. The additional officers were identified by the investigation as PO Nivia Fontanez, Sgt. Francisco Perez, and PO Alexis Dejesus. When the officers approached the group, everyone asked the officers what the problem was. PO Ramos, PO Fontanez, and Sgt. Perez did not respond but checked the ground around the group with their flashlights. The officers found the empty liquor bottle.

After the officers found an empty liquor bottle, PO Ramos and PO Fontanez requested identification from the entire group. § 87(2)(b) provided his identification to PO Ramos. § 87(2)(b), and "§ 87(2)(b)" were against a wall, standing on § 87(2)(b) with PO Fontanez, Sgt. Perez, and PO Dejesus, while § 87(2)(b) was around the corner, standing on § 87(2)(b) with PO Ramos. § 87(2)(b) could not see around the corner to observe the interaction between § 87(2)(b) and PO Ramos, and did not overhear the conversation between § 87(2)(b) and PO Ramos. Sgt. Perez instructed that everyone be handcuffed and placed inside the police van. From inside the van, § 87(2)(b) observed § 87(2)(b) standing against the wall in handcuffs with his eyes closed. § 87(2)(b) believed § 87(2)(b) eyes were closed because PO Ramos had pepper sprayed him. § 87(2)(b) did not observe this first hand, but deduced this from the smell of pepper spray on § 87(2)(b) after he was placed in the van. § 87(2)(b) was yelling that the officers were "fucked up" and that he would get them. PO Ramos escorted § 87(2)(b) to the police van. § 87(2)(b) was cooperative in being escorted to the van and was not resisting. PO Ramos shoved § 87(2)(b) by his back and

shoulders as he went headfirst into the van and § 87(2)(b) legs went up in the air as he was shoved inside the van. § 87(2)(b) landed on his side on a seat inside the van. § 87(2)(b) did not observe § 87(2)(b) kick or make any deliberate physical contact with PO Ramos or any other officer at the location. § 87(2)(b) did not see any of the officers kick, stomp or punch § 87(2)(b) at the scene. Everyone was transported to the 44th Precinct stationhouse.

Once at the stationhouse, § 87(2)(b) asked the desk sergeant if he could wash out his eyes. § 87(2)(b) and § 87(2)(b) were placed in a holding cell by PO Fontanez and PO Ramos. § 87(2)(b) continued to yell that he wanted to wash his face at the front desk. The officers told § 87(2)(b) that they would not let him wash his face until he calmed down. § 87(2)(b) was taken to a separate holding cell at the rear of the stationhouse. While in the holding cell, § 87(2)(b) heard § 87(2)(b) yelling that the officers were beating him up. § 87(2)(b) did not observe this interaction. § 87(2)(b) did not know which officers went with § 87(2)(b) to the back cell room. § 87(2)(b) was brought out of the back cell room by officers whom § 87(2)(b) did not recall and had scratches on his forehead and on his cheek. § 87(2)(b) was then taken to the bathroom to wash his face. § 87(2)(b) heard § 87(2)(b) yell that the officers used hot water to wash his face. § 87(2)(b) was placed in another holding cell and § 87(2)(b) his brother, and their friends were taken to Central Booking.

Please call letters were sent to § 87(2)(b) on January 26, 2012, February 22, 2012, and May 31, 2012. The CCRB contacted § 87(2)(b) on June 6, 2012, and upon the investigator attempting to schedule an interview, § 87(2)(b) stated that he was not able to schedule a date for a formal interview at the current time. He stated that he would contact the CCRB to schedule a date and time to come in to provide a statement. As of the writing of this report, § 87(2)(b) has not contacted the CCRB to provide a formal statement.

Attempts to Contact Witnesses

§ 87(2)(b) was only able to provide the nicknames of his friends. He provided a complete mailing address for “§ 87(2)(b) who was later identified by the investigation as § 87(2)(b) and provided partial mailing addresses for “§ 87(2)(b) and “§ 87(2)(b) who were later identified as § 87(2)(b) and § 87(2)(b). A please call letter was sent to § 87(2)(b)'s address on December 5, 2011. NYPD documents, received on January 26, 2012, confirmed the identities of the witnesses, identified a remaining witness as § 87(2)(b) and also provided their complete mailing addresses. A LexisNexis search, conducted on January 26, 2012, confirmed the addresses of the witnesses, but provided no current contact numbers. Please call letters were sent to the addresses on January 26, 2012, February 22, 2012, and May 31, 2012. A Cole's directory search and a Whitepages search, conducted on May 3, 2012, yielded negative results for contact numbers for the witnesses. No letters sent to § 87(2)(b) or § 87(2)(b) has been returned to the CCRB.

On February 27, 2012, the CCRB received a message from § 87(2)(b). Between February 28, 2012, and May 3, 2012, the CCRB made three calls to § 87(2)(b) and messages were left requesting that § 87(2)(b) contact the CCRB to discuss the incident. As of the writing of this report, § 87(2)(b) has not contacted the CCRB (encl. 15A-15A[i]).

NYPD Statement(s):

Subject Officer: PO JOSÉ RAMOS

- PO José Ramos is a § 87(2)(b) old, Hispanic male, § 87(2)(b) with black hair, and brown eyes.
- On August 13, 2011, PO Ramos worked from 6:00 p.m. to 2:00 a.m., assigned to conditions, with Sgt. Francisco Perez, PO Alexis Dejesus, and PO Nivia Fontanez. He was dressed in uniform and assigned to marked police van 8669.

Memo Book

On August 13, 2011, at 11:05 p.m. PO Ramos observed a large group on the southwest corner of § 87(2)(b) and § 87(2)(b) acting disorderly, and yelling in a loud boisterous manner. He observed six bottles of Coronas and a bottle of Hennessy in custody and control of the six individuals. When the officers approached the group, Sgt. Perez requested identification from one male individual, identified as § 87(2)(b) § 87(2)(b) yelled at Sgt. Pérez, "What do you want? You don't need my fucking ID, I know my rights." At this point, Sgt. Perez gave PO Ramos a lawful order to handcuff § 87(2)(b) § 87(2)(b) was to be arrested for unreasonable noise and refusal to provide identification. When PO Ramos attempted to handcuff § 87(2)(b) he flailed his arms. PO Ramos was eventually able to handcuff § 87(2)(b) As PO Ramos supervised § 87(2)(b) the remaining officers were addressing the open containers that were on the sidewalk and on the van that the six individuals were previously leaning on. As PO Ramos observed his partners, § 87(2)(b) kicked PO Ramos with the back of his right heel, in his groin. Immediately, PO Ramos pushed § 87(2)(b) towards the wall to get him off balance in order and to prevent him from hitting him again. § 87(2)(b) then became combative and disorderly, and PO Ramos escorted him towards the van for transportation. As he attempted to place § 87(2)(b) in the van, § 87(2)(b) kicked at the van and kicked PO Ramos on the chin. PO Ramos pepper sprayed § 87(2)(b) and in response, § 87(2)(b) spit at PO Ramos. A large crowd gathered and the other stopped individuals began to yell that the officers were beating up § 87(2)(b) At 11:17 p.m., the officers transported § 87(2)(b) and the six individuals to the 44th Precinct for unreasonable noise. PO Ramos issued a summons to § 87(2)(b) for § 87(2)(b). The remaining individuals, § 87(2)(b) § 87(2)(b) and § 87(2)(b) were arrested for § 87(2)(b) § 87(2)(b) § 87(2)(b) (encl. 7A-7G).

NYPD Complaint and Arrest Reports

§ 87(2)(a) 160.50

CCRB Statement

PO José Ramos was interviewed at the CCRB on April 12, 2012 (encl. 7A-7W). On August 13, 2012, PO Ramos, and his partners, Sgt. Perez, PO Dejesus, and PO Fontanez drove southbound on § 87(2)(b) towards § 87(2)(b). PO Ramos did not recall which officer was driving the van, but recalled that he had been seated in the back. As the officers drove down § 87(2)(b) a bottle hit the ground in front of the van. The officers looked in the direction from which the bottle was thrown and saw a group of approximately seven to eight males on the corner. PO Ramos observed § 87(2)(b) with an open bottle of Corona beer. § 87(2)(b) placed the beer bottle on the ground next to him. There was an open bottle of Hennessy next to a mailbox amongst the group, approximately a foot and a half from § 87(2)(b). There were numerous Corona bottles and plastic cups in the midst of the group. PO Ramos never observed

these individuals drink from the Corona bottles or from the plastic cups. The officers stopped the van and all officers exited the van.

Once the officers approached the group, PO Ramos requested identification from § 87(2)(b). PO Ramos approached § 87(2)(b) first because that is who he had seen with the Corona bottle. § 87(2)(b) made no response to PO Ramos's request. Sgt. Perez then requested identification from § 87(2)(b). § 87(2)(b) replied to Sgt. Perez, "Fuck outta here! I don't gotta give you ID" and that he knew his rights. Sgt. Perez then instructed PO Ramos to place § 87(2)(b) in handcuffs since he refused to provide his identification after requests from both officers. PO Ramos proceeded to place § 87(2)(b) in handcuffs and instructed § 87(2)(b) to turn around and place his hands behind his back. § 87(2)(b) did not comply. When PO Ramos grabbed one of § 87(2)(b)'s arms and brought it behind his back, § 87(2)(b) flailed his other arm in an attempt to prevent PO Ramos from handcuffing the other. PO Ramos instructed § 87(2)(b) to give the officer his hand. PO Ramos was able to handcuff his other arm. PO Ramos did not recall if § 87(2)(b) voluntarily offered his hand, if he had to issue additional instructions for § 87(2)(b) to comply, or use force in order to obtain § 87(2)(b)'s other arm. During the handcuffing, § 87(2)(b) was not saying anything to PO Ramos. PO Ramos then had § 87(2)(b) face the wall. While standing behind § 87(2)(b) PO Ramos told him that he would be issued a summons at the precinct stationhouse because he refused to provide identification when it was requested. § 87(2)(b) turned his head to the left and said, "Civilian Complaint Review Board, I got you Ramos" and read PO Ramos' shield number out loud. PO Ramos did not respond to § 87(2)(b)'s statement or punch § 87(2)(b) repeatedly in the head. Approximately 5-10 seconds later, § 87(2)(b) lifted his right foot behind him, and kicked PO Ramos in the groin with his right heel. The kick took PO Ramos by surprise and as a reaction, PO Ramos pushed § 87(2)(b) across his upper back with his right forearm towards the wall to create space between them. As PO Ramos pushed § 87(2)(b) forward to create space between the two, PO Ramos speculated that § 87(2)(b) may have made contact with the wall in front of him.

PO Ramos pulled § 87(2)(b) away from the wall to escort him to the police van. As § 87(2)(b) was not facing him, PO Ramos did not observe any bruises or scrapes on § 87(2)(b)'s face. As PO Ramos escorted § 87(2)(b) towards the police van that was parked across the street, § 87(2)(b) yelled and cursed out loud. PO Ramos did not recall § 87(2)(b)'s statements. § 87(2)(b) also physically resisted by attempting to pull away from PO Ramos' hold on his arm. Once they arrived at the van, § 87(2)(b) refused to enter it. PO Ramos had to physically place § 87(2)(b) inside the police van. PO Ramos held § 87(2)(b)'s left arm and lifted and placed him into the van. Once inside the van, § 87(2)(b) refused to take a seat. PO Ramos repeatedly instructed § 87(2)(b) to sit on the back seat of the van, but § 87(2)(b) refused to do so, and continued to yell at PO Ramos, "Fuck you!" and other expletives. With both men facing each other, § 87(2)(b) spat at PO Ramos. PO § 87(2)(b) attempted to push § 87(2)(b) to the back seat of the van but § 87(2)(b) resisted by pushing forward against PO Ramos. PO Ramos succeeded in pushing § 87(2)(b) to the back seat but § 87(2)(b) deliberately kicked PO Ramos in the groin again with his left leg and kicked PO Ramos on the left side of the chin with his right leg. After PO Ramos forced § 87(2)(b) to sit down in the van, § 87(2)(b) kicked at the van windows. PO Ramos removed his mace and sprayed it at § 87(2)(b)'s face. PO Ramos released one spray, but was unable to approximate the length of the burst. PO Ramos had initially stated that § 87(2)(b) spat on him again before spraying him. Upon further questioning, PO Ramos did make this statement again. After spraying § 87(2)(b) he eventually calmed down and became quiet. PO Ramos heard individuals yelling that § 87(2)(b) was getting beaten up inside of the van. A group of approximately 8-10 people was gathered on the same side of the street as the police van. PO Ramos exited the van and Sgt. Perez approached him. PO Ramos left the doors to the van open. PO Ramos relayed what had happened to Sgt. Perez, and Sgt. Perez ordered that everyone be taken back to the stationhouse, based on the totality of the circumstances of the group and the stop.

Once at the stationhouse, PO Ramos believed he had no further contact with § 87(2)(b) although he speculated that he may have fingerprinted him. An ambulance was called for PO Ramos to examine him for any injury. PO Ramos overheard § 87(2)(b) complaining about the spray in his eyes. An unidentified officer escorted § 87(2)(b) to the bathroom to wash out his eyes. Once out of the bathroom, § 87(2)(b) continued yelling and cursing in the stationhouse. PO Ramos speculated that Sgt. Perez and PO Dejesus escorted § 87(2)(b) to the back holding cell but was unsure as he went to the bathroom at the same time. PO Ramos did not have any interaction with § 87(2)(b) while he was in the back holding cell and did not observe any interaction between § 87(2)(b) and any officer in the back holding cell area. § 87(2)(b) complained of an ankle injury and pain in his wrist and was taken to the hospital. PO Ramos presumed this injury was from kicking him. While at the stationhouse, PO Ramos did not observe § 87(2)(b) on the ground and did not observe any officer kick § 87(2)(b).

Subject Officer: SGT. FRANCISCO PEREZ

- Sgt. Francisco Perez is § 87(2)(b) old, Hispanic male, § 87(2)(b) with black hair and brown eyes.
- On August 13, 2011, Sgt. Perez worked from 5:15 p.m. to 2:12 a.m., assigned to conditions, with PO José Ramos and PO Alexis Dejesus. He was assigned to marked police van 8669 and was dressed in uniform.

Memo Book

On August 13, 2011, at 11:17 p.m., Sgt. Perez and his partners placed § 87(2)(b) and § 87(2)(b) under arrest at the corner of § 87(2)(b) and § 87(2)(b) in the Bronx. All seven were arrested for § 87(2)(b). § 87(2)(b) was also charged with § 87(2)(b). OC spray was used by an officer and there were no noted visible injuries. At 11:40 p.m., Sgt. Perez arrived at the 44th Precinct stationhouse. At 12:25 a.m., § 87(2)(b) was removed to § 87(2)(b) for medical attention (encl. 8A-8C).

CCRB Statement

Sgt. Francisco Perez was interviewed at the CCRB on May 3, 2012 (encl. 8G-8J). On August 13, 2011, at 11:17 p.m., Sgt. Perez, PO Ramos, and PO Dejesus drove past the corner of § 87(2)(b) and § 87(2)(b) and Sgt. Perez saw six to seven males standing on the corner. A couple of them were leaning on a nearby van, which had its door open, as it played loud music from the radio inside. Sgt. Perez observed all of the males drinking from Corona beer bottles. There were also empty Corona beer bottles on the ground next to the group of males. Based on the loud music and the sight of the males drinking beers in public, the officers stopped their van and approached the group.

Sgt. Perez, PO Ramos, and PO Dejesus exited the van and approached the group of males. Sgt. Perez asked, “Anyone has ID?” and stated, “You know you’re not supposed to drink out here.” An individual in the group, identified by the investigation as § 87(2)(b) told the officers that he did not have to give them anything, and questioned the officers as to why they stopped him. Sgt. Perez instructed PO Ramos to place § 87(2)(b) under arrest. § 87(2)(b) was to be arrested for his refusal to provide identification, and because he would have to be taken to the stationhouse to determine his identity, before they could give him a summons. In response, § 87(2)(b) became upset. Sgt. Perez stated that § 87(2)(b) became “belligerent”, yelling and cursing, but could not remember § 87(2)(b) exact statements. While Sgt. Perez dealt with the remaining members of the group, PO Ramos placed § 87(2)(b) against a gate around the corner and handcuffed him. Sgt. Perez did not observe PO Ramos push § 87(2)(b) against the gate. Furthermore, he did not see any further interactions between PO Ramos and § 87(2)(b) as both men were around the corner. Sgt. Perez heard § 87(2)(b) yelling at PO Ramos. Sgt. Perez did

not see PO Ramos repeatedly strike § 87(2)(b) on the back of his head with a closed fist. PO Ramos escorted § 87(2)(b) to the police van. § 87(2)(b) did not resist moving to the van, and was brought to the side of the police van facing the street.

After PO Ramos escorted § 87(2)(b) to the van, Sgt. Perez heard a commotion from the van, which sounded as if “someone had hit the door”. Sgt. Perez approached the van to see what was going on. § 87(2)(b) was seated inside the van, with PO Ramos crouching down outside the van. PO Ramos told Sgt. Perez that § 87(2)(b) had kicked him in the face and the groin. Sgt. Perez did not see any injuries on either PO Ramos or § 87(2)(b) face. After what had happened between PO Ramos and § 87(2)(b) everyone was brought to the 44th Precinct stationhouse for processing. After they arrived at the stationhouse, Sgt. Perez noticed that § 87(2)(b) had been pepper sprayed. This was the first time that he was made aware of this. He did not observe PO Ramos pepper spray § 87(2)(b). PO Ramos confirmed to Sgt. Perez that he had sprayed § 87(2)(b) at the stationhouse. § 87(2)(b) complained about the spray in his eyes once at the stationhouse. § 87(2)(b) did not complain about any other injuries.

Once inside the stationhouse, Sgt. Perez and PO Dejesus took § 87(2)(b) to the precinct bathroom to flush the mace from his eyes. During this, § 87(2)(b) was irate, “belligerent”, and complained about his eyes itching. After § 87(2)(b) washed his face, he was taken out of the bathroom and put into the back cells. While inside the cell, § 87(2)(b) struck his own forehead against the wall, and claimed: “Now I’m going to get real injuries. Now you’re going to pay.” In response, Sgt. Perez sat § 87(2)(b) down on the floor by grabbing his shoulders and telling him to sit down. He never dropped or pushed § 87(2)(b) to the floor. Sgt. Perez did not hold § 87(2)(b) to the floor on his side, and did not see any other officers doing so. Sgt. Perez did not punch or kick § 87(2)(b) while he was on the floor, and did not stomp on his left leg or left ankle. He did not observe any officer do so. An ambulance was called for § 87(2)(b) and PO Dejesus escorted § 87(2)(b) to the hospital. Sgt. Perez did not know what injury § 87(2)(b) was to be treated for by the ambulance. Before he left, Sgt. Perez did not see any scrapes or bruises on § 87(2)(b) at the stationhouse. Sgt. Perez was shown a photograph of § 87(2)(b) with an injury on his cheek. Sgt. Perez did not notice this injury throughout their interaction. Sgt. Perez stated that injury on § 87(2)(b) cheek could be consistent with § 87(2)(b) striking his head against the wall inside the back cell.

Subject Officer: PO ALEXIS DEJESUS

- PO Alexis Dejesus is a § 87(2)(b) old, Hispanic male, § 87(2)(b) with brown hair and brown eyes.
- On August 13, 2011, PO Dejesus worked from 5:30 p.m. to 2:05 a.m., assigned to conditions with PO José Ramos, PO Nivia Fontanez, and Sgt. Francisco Perez. He was assigned to marked police van 8669, and dressed in uniform.

Memo Book

On August 13, 2011, at 11:05 p.m., PO Ramos arrested seven individuals. At 11:20 p.m., the officers arrived at the 44th Precinct stationhouse. At 12:40 a.m., PO Dejesus escorted § 87(2)(b) to § 87(2)(b) (encl. 9A-9B).

CCRB Statement

PO Alexis Dejesus was interviewed at the CCRB on May 8, 2012 (encl. 9C-9E). On August 13, 2011, at approximately 11:00 p.m., PO Dejesus and PO Ramos, PO Fontanez, and Sgt. Perez observed seven males standing on the corner of § 87(2)(b) and § 87(2)(b) drinking from plastic cups and beer bottles. Some of the individuals had cups in their hands, some held Corona bottles in their hands, and some had cups and bottles on the floor next to them. PO Dejesus claimed the Corona beer bottles were proof that the group was drinking alcohol, but he

could not say for sure what kind of alcohol they may have been drinking in the cups. The officers stopped and parked their van a few feet from the group.

Upon approaching the group, the officers requested identification. The group was agitated, but not confrontational. PO Dejesus and PO Fontanez focused on two individuals from the group who were in the back, while Sgt. Perez and PO Ramos focused on the remaining individuals. One individual, identified by PO Dejesus as § 87(2)(b) refused to provide identification to the officers and was being rowdy and loud. § 87(2)(b) was around the corner, separated from the rest of the group, with PO Ramos. As § 87(2)(b) was around the corner, PO Dejesus could not hear the conversation and did not observe the interaction between § 87(2)(b) and PO Ramos. PO Dejesus did not see PO Ramos strike § 87(2)(b) in the back of the head with a closed fist or push him up against a wall.

§ 87(2)(b) was taken to the police van by PO Ramos. PO Dejesus did not know why he was being taken to the van. PO Dejesus heard an altercation in the police van, which he described as yelling and arguing. After § 87(2)(b) was taken to the police van, a crowd of approximately ten individuals formed around the officers and the group. The crowd was “riled up” due to the arrest of § 87(2)(b) and the remaining individuals of the initial group became less cooperative. PO Dejesus did not specify what actions from the individuals indicated that they were less cooperative. On the orders of Sgt. Perez, all of the individuals from the stopped group were placed under arrest and taken to the stationhouse.

On the way to the 44th Precinct stationhouse, PO Dejesus did not hear § 87(2)(b) complain of injuries. PO Dejesus later learned that PO Ramos had pepper sprayed § 87(2)(b) but did not observe this action. At the stationhouse, PO Dejesus escorted § 87(2)(b) to the bathroom to wash his face. § 87(2)(b) was uncooperative by kicking his legs and swinging his body around. Sgt. Perez and PO Dejesus brought § 87(2)(b) to a room near the back cells of the stationhouse. § 87(2)(b) yelled at PO Dejesus but PO Dejesus did not recall § 87(2)(b) statements. In the room, PO Dejesus and Sgt. Perez sat § 87(2)(b) down on a chair. While seated, § 87(2)(b) continued to curse at the officers. § 87(2)(b) then swung his head to the left and struck his own head against a wall. § 87(2)(b) struck his head once, as PO Dejesus and Sgt. Perez restrained § 87(2)(b) to prevent him from hitting his head again. When the officers let go of § 87(2)(b) § 87(2)(b) threw himself off of his chair and landed on his right side. PO Dejesus and Sgt. Perez did not strike § 87(2)(b) when he was on the floor, and did not kick him or stomp on his body. PO Dejesus did not observe any officer use any force against § 87(2)(b). PO Dejesus and Sgt. Perez attempted to pick § 87(2)(b) up off of the floor, but § 87(2)(b) kicked PO Dejesus and Sgt. Perez on their shins, and yelled at them. PO Dejesus and Sgt. Perez held him down until EMS arrived at the station house. Once the ambulance arrived, § 87(2)(b) calmed down.

PO Dejesus escorted § 87(2)(b) to § 87(2)(b). § 87(2)(b) told PO Dejesus he had successfully sued the NYPD before. Their stay at the hospital was brief, and afterwards, PO Dejesus transported § 87(2)(b) back to the stationhouse for processing. When shown a photograph of a scrape on the side of § 87(2)(b) face, PO Dejesus denied observing this scrape at the initial incident location and denied seeing the scrape at the station house. PO Dejesus stated that it was possible that the scrape could have happened from § 87(2)(b) hitting his head against the wall at the station house.

Witness Officer: PO NIVIA FONTANEZ

- PO Nivia Fontanez is § 87(2)(b) old, Hispanic female, § 87(2)(b) with brown hair and brown eyes.
- On August 13, 2011, PO Fontanez worked from 5:30 p.m. to 2:05 a.m., assigned to Conditions, with PO José Ramos, PO Alexis Dejesus, and Sgt. Francisco Perez. She was dressed in uniform and assigned to marked police van 8669.

Memo Book

At 11:05 p.m., PO Fontanez observed a large group of males, drinking in public in the vicinity of § 87(2)(b) and § 87(2)(b). At 11:17 p.m., PO Ramos arrested six individuals, and he was also seen by medical personnel for minor injuries (encl. 10A-10B).

CCRB Statement

PO Nivia Fontanez was interviewed at the CCRB on April 13, 2012 (encl. 10C-10E). PO Fontanez's statement corroborated that of her partners' in regards to the actions and demeanor of the stopped group, including § 87(2)(b). She did not observe PO Ramos use any force against § 87(2)(b) at the initial location. PO Fontanez approached the van upon hearing screams from PO Ramos and saw both PO Ramos and § 87(2)(b) inside the van. PO Ramos was yelling at § 87(2)(b) to "stop resisting arrest", and to "calm down". PO Fontanez did not specify what § 87(2)(b) actions were that required that he calm down or stop resisting. § 87(2)(b) was not compliant and PO Ramos removed his pepper spray from its holster. PO Ramos sprayed § 87(2)(b) but PO Fontanez did not observe how PO Ramos sprayed § 87(2)(b) as both PO Ramos and § 87(2)(b) were towards the back of the police van and the windows were tinted. After being pepper sprayed, § 87(2)(b) began screaming and spat at PO Ramos and at the interior of the van.

Everyone was transported to the 44th Precinct stationhouse. Once § 87(2)(b) was inside the stationhouse, he complained about his eyes. PO Dejesus escorted § 87(2)(b) to the stationhouse bathroom to wash the mace out of his eyes. § 87(2)(b) was taken to a rear holding cell by PO Dejesus and an unidentified officer to be searched. PO Fontanez was not present in the back cell, so she did not observe any interaction between § 87(2)(b) and the officers who escorted him to the back. Other than his eyes, § 87(2)(b) did not mention any other injuries nor did she observe any injuries on his person. PO Fontanez did not observe § 87(2)(b) on the floor of the stationhouse during his time there. She did not observe any officer kick or punch § 87(2)(b) while he was inside the stationhouse.

Medical Records

§ 87(2)(a) PHL § 18(6)

[REDACTED]

NYPD Document(s)

SPRINT

SPRINT § 87(2)(b) indicated that on August 13, 2011, at approximately 11:29 a.m., Sector 44ST3 arrived at § 87(2)(b) between § 87(2)(b) in the Bronx.

Sector 44ST3 reported six individuals arrested at 11:41 p.m., and confirmed their arrest 2:58 a.m. (encl. 12A).

Command Log

The tour 3 Command Log for the 44th Precinct on August 13, 2011, listed 7 arrests entered for PO Ramos. The arrested individuals were § 87(2)(b) and § 87(2)(b) § 87(2)(b) was arrested in front of § 87(2)(b) while the remaining six were arrested at the intersection of § 87(2)(b) and § 87(2)(b). Under § 87(2)(b) entry, it was noted that pepper spray was used, while the other arrests were described as apparently normal. § 87(2)(b) was transported to § 87(2)(b) at 12:25 a.m., and was returned to the stationhouse at 2:25 a.m. § 87(2)(b) transported to Bronx Central Booking at 5:45 a.m. § 87(2)(b) was released at 1:20 a.m. with a summons. § 87(2)(b) and § 87(2)(b) were transported to Bronx Central Booking at 9:00 a.m. on August 14, 2011 (encl. 12N-12O).

AIDED

No AIDED report could be found in connection to this incident.

Summons/Arrest for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- § 87(2)(b) filed a Notice of Claim with the City of New York on § 87(2)(b), claiming false arrest, malicious prosecution, and false imprisonment, and seeking an unspecified monetary amount as redress (encl. 14A-14B).

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian(s) CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 2).

Subject Officer(s) CCRB History

- PO José Ramos has been a member of the service for four years and there is one substantiated CCRB allegation against him. For CCRB case 201014287, he received instructions for stopping an individual (encl. 1A).
- Sgt. Francisco Perez has been a member of the service for thirteen years, and there are no substantiated CCRB allegations against him (encl. 1B).
- PO Alexis Dejesus has been a member of the service for four years and there are no substantiated CCRB allegations against him (encl. 1C).

Conclusion

Identification of Subject Officer(s)

- § 87(2)(b) provided both the names of PO Ramos and Sgt. Perez by name when he initially filed the complaint. During his formal interview, he provided PO Dejesus' name. The officers each match the descriptions provided by § 87(2)(b). Each officer acknowledged their role and the extent of their interaction with § 87(2)(b) at the initial location and at the 44th Precinct stationhouse. § 87(2)(g)

Investigative Findings and Recommendations

Allegations Not Pleaded

- § 87(2)(g)

Allegation A – Force: At § 87(2)(b) and § 87(2)(b) in the Bronx, PO José Ramos used physical force against § 87(2)(b)

Allegation C – Force: At the 44th Precinct stationhouse, Sgt. Francisco Perez used physical force against § 87(2)(b)

Allegation D – Force: At the 44th Precinct stationhouse, PO Alexis Dejesus used physical force against § 87(2)(b)

It is undisputed that § 87(2)(b) body and face were pushed against a wall. § 87(2)(b) arrest photograph (encl. 4G) and ambulance call report (encl. 11B) confirm the existence of the scrape and its location as specified by § 87(2)(b). § 87(2)(b) alleged that after he read PO Ramos' shield number out loud, PO Ramos pushed him up against a brick wall, resulting in the scrape on his face, and punched him repeatedly on the back of his head. § 87(2)(b) denied kicking PO Ramos as his arrest report stated he did. In his telephone statement, § 87(2)(b) alleged that PO Ramos "beat him up" inside the police van. However, § 87(2)(b) did not reiterate this allegation in his subsequent statement. At the stationhouse, § 87(2)(b) acknowledged that he threatened to kick around him, possibly striking an officer, if he was not provided water to wash his face. After he was allowed to wash his face, § 87(2)(b) was escorted to a back room and fell to the floor by some unspecified means. While on the floor, § 87(2)(b) felt multiple hits, kicks, and stomps to on his arm, ribs, left leg, and left ankle. He was unable to see who was hitting him, due to the pepper spray in his eyes. When § 87(2)(b) was able to open his eyes, he saw that PO Dejesus and Sgt. Perez were the only individuals in the room with him. In his telephone statement, § 87(2)(b) alleged that upon him opening his eyes, PO Dejesus said, "Oh, now you can see motherfucker!" Again, § 87(2)(b) did not reiterate this allegation in his subsequent statement. § 87(2)(g)

In regards to the alleged force at the stationhouse, neither § 87(2)(b) nor § 87(2)(b) observed

this interaction, but both testified that they heard § 87(2)(b) screaming from behind the closed door of a back room that he was being beaten.

Each officer reported that upon approaching § 87(2)(b) and his friends, § 87(2)(b) was immediately hostile and refused to comply with the officers' request for his identification. PO Ramos reported that as he attempted to place § 87(2)(b) in handcuffs, § 87(2)(b) flailed his arms and refused to comply with PO Ramos' instructions. Upon having § 87(2)(b) face the wall, § 87(2)(b) read PO Ramos' shield number out loud and kicked PO Ramos while the officer stood behind him. As a reaction to being kicked, PO Ramos admitted that he did push § 87(2)(b) towards the wall to create space between them in order to prevent § 87(2)(b) from kicking him again. PO Ramos denied punching § 87(2)(b) in the back of the head. Sgt. Perez, PO Dejesus and PO Fontanez did not observe any physical interaction between PO Ramos and § 87(2)(b) but the officers corroborated that PO Ramos complained of being kicked by § 87(2)(b). Both PO Dejesus and Sgt. Perez denied using physical force towards § 87(2)(b) at the 44th Precinct stationhouse. Each officer described § 87(2)(b) as either irate, belligerent, yelling, or physically resistant. Both PO Dejesus and Sgt. Perez testified that while in the back room with § 87(2)(b), § 87(2)(b) intentionally hit his head against the cell wall and threw himself off of his seat and to the floor. Neither PO Dejesus nor Sgt. Perez forced § 87(2)(b) to the floor. Neither officer punched, kicked, or stomped § 87(2)(b) while he was on the ground.

Allegation B – Force: At § 87(2)(b) and § 87(2)(b) in the Bronx, PO José Ramos pepper sprayed § 87(2)(b)

sprayed the seat behind where § 87(2)(b) head laid. PO Ramos then grabbed § 87(2)(b) head and rubbed it face first into the where he had originally sprayed the mace. § 87(2)(b) maintained that he made no action towards PO Ramos that would have warranted the use of mace. § 87(2)(b) testified that he observed PO Ramos remove his mace canister from its holster but could not specify how PO Ramos used it against § 87(2)(b). § 87(2)(b) stated that § 87(2)(b) only action prior to being sprayed was asking what he had done. § 87(2)(b) did not observe § 87(2)(b) being sprayed by PO Ramos.

PO Ramos testified that due to § 87(2)(b) unruly behavior inside the van, which including yelling, spitting at PO Ramos, kicking at the van windows, and § 87(2)(b) refusal to comply with PO Ramos's instructions to sit down, PO Ramos sprayed § 87(2)(b) once in the face with his mace. PO Ramos did not spray his mace onto any surface of the van and then rub § 87(2)(b) face into that area. Each officer testified that they heard either a commotion, yelling, screams, or noises that sounded like hits against the surface of the van while PO Ramos and § 87(2)(b) were inside the van. Neither Sgt. Perez nor PO Dejesus could testify what actions from § 87(2)(b) or PO Ramos caused the noises they heard. PO Fontanez testified that after hearing the commotion from the van, she went over to the van and saw both PO Ramos and § 87(2)(b) inside the van. PO Ramos was yelling at § 87(2)(b) to calm down and to stop resisting but was unable to specify what § 87(2)(b) actions were at that time. She observed PO Ramos remove the mace canister from his holster but could not see how PO Ramos administered the mace to § 87(2)(b) as both men were in the rear of the van. § 87(2)(g)

§ 87(2)(b). It is therefore recommended that
Allegation B be Unsubstantiated.

Team: 5

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date